

MASTER SERVICES AGREEMENT

Document Reference: SG-MSA-2024-VERTEX-11
Effective Date: August 1, 2024

This Master Services Agreement (the "Agreement") is entered into as of the Effective Date set forth above, by and between:

Société Générale International S.A., a société anonyme organized and existing under the laws of France, having its registered office at 29 boulevard Haussmann, 75009 Paris, France (hereinafter referred to as the "Client"),

and **Vertex Transact Corp**, a corporation organized and existing under the laws of the State of Delaware, United States of America, having its principal place of business at 450 Innovation Drive, Austin, TX 78701 (hereinafter referred to as the "Provider").

(Each a "Party" and collectively, the "Parties").

1. DEFINITIONS

1.1 **Customer Data** shall mean all data, information, or materials provided by Client to Provider or generated by Provider in the course of performing the Services, including but not limited to cardholder data, transaction records, account information, personally identifiable information, and any derivatives or aggregations thereof. Customer Data shall be deemed Confidential Information of Client.

1.2 **Proprietary Information** shall mean any and all non-public information disclosed by one Party to the other Party that is designated as confidential or that reasonably should be understood to be confidential.

1.3 **Core Production Infrastructure** shall mean Client's live operational environment, including primary transactional databases, payment switches, card management systems, secure network segments, and all associated hardware, software, and network components that process, store, or transmit production financial transactions and Customer Data in real-time.

2. SCOPE OF WORK

2.1 Provider shall perform the Services as described in one or more Statements of Work, including merchant payment gateway, tokenization, and fraud-screening services.

2.2 Provider shall directly interface with Client's live transactional databases and Core Production Infrastructure in accordance with the security protocols set forth in the applicable Statement of Work. All such interfaces shall be conducted through secure, encrypted channels using industry-standard protocols.

2.3 Provider shall maintain all necessary licenses, certifications, and compliance with applicable laws, regulations, and card scheme rules (including but not limited to PCI DSS) at all times during the Term.

3. FEES & FINANCIAL TERMS

3.1 Fees. In consideration for the Services, Client shall pay Provider the fees set forth in the applicable Statement of Work. 3.2 Billing Cycles. Provider shall invoice Client monthly in arrears. 3.3 Payment Schedules. Client shall remit payment within thirty (30) days of receipt. Late payments accrue interest at 1.5% per month. 3.4 Taxes. Fees are exclusive of all applicable taxes.

4. INDEMNIFICATION

4.1 Mutual Indemnification. Each Party shall indemnify, defend, and hold harmless the other Party from claims arising out of (i) any breach of this Agreement, or (ii) the gross negligence or willful misconduct of the indemnifying Party.

4.2 Liability Cap. Subject to Section 4.3, the total aggregate liability of Provider to Client under this Agreement shall not exceed Two Million United States Dollars (USD \$2,000,000.00).

4.3 Uncapped Liabilities. The liability cap shall not apply to: (i) indemnification for gross negligence or willful misconduct; (ii) breach of confidentiality obligations; (iii) willful data security failures, including breaches of PCI DSS, unauthorized access to Core Production Infrastructure, or compromise of Customer Data; or (iv) any liability that cannot be limited by applicable law.

5. TERM & TERMINATION

5.1 Term. This Agreement shall commence on the Effective Date and continue for twenty-four (24) months thereafter (the "Initial Term"), unless earlier terminated.

5.2 Termination for Cause. Either Party may terminate immediately upon written notice if the other Party materially breaches this Agreement and fails to cure within thirty (30) days, or becomes insolvent.

5.3 Security Certification Termination Right. Client shall have the right to terminate this Agreement immediately for cause, without cure period, if Provider fails to maintain valid and current PCI DSS Level 1 certification. No equivalent termination right is extended for lapse of ISO 27001 or other certifications, as Provider does not hold an ISO 27001 certification as of the Effective Date. Upon such termination, Provider shall promptly return or destroy all Customer Data.

5.4 Effects of Termination. Upon termination: all rights and licenses cease, Provider shall return or destroy Customer Data, Client shall pay outstanding undisputed Fees, and surviving obligations continue per Sections 1, 4, 6, 7.

6. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of the State of New York. Disputes shall be resolved exclusively in the state or federal courts located in New York County, New York.

7. CONFIDENTIALITY

Each Party agrees to maintain the confidentiality of the other Party's Proprietary Information and Customer Data using at least the same degree of care as for its own similar information. This obligation survives for five (5) years following termination.

8. MISCELLANEOUS

8.1 This Agreement, together with any Statements of Work, constitutes the entire agreement between the Parties.

8.2 No amendment shall be effective unless in writing and signed by both Parties. 8.3 If any provision is held invalid, the remainder shall continue in full force. 8.4 Neither Party may assign this Agreement without prior written consent, except in connection with a merger or acquisition.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For Société Générale International S.A. (Client):

Name: _____

Title: _____

Date: _____

For Vertex Transact Corp (Provider):

Name: _____

Title: _____

Date: _____